



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Erin Fagan
Subject: UDC-23-00065-01 | 5224 Ridge Road – Zoning Map Amendment
Date: April 5, 2023

Background:

The item for consideration is a *Zoning Map Amendment (zone change)*. This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 4/10/2023
- Public Services Committee 4/18/2023
- Second reading 4/24/2023
- Public Services Committee 5/2/2023
- Third and final reading 5/8/2023

Planning Commission Recommendation:

The Planning Commission heard this item at their April 3, 2023 meeting and unanimously recommended the Governing Body approve this application.

The Planning Commission staff report is attached. The applicant, John Lopeman, for the Cheyenne Classical Academy has withdrawn their application for a Primary and Secondary School. The school has found another location for their development. The zone change and annexation will move forward being represented by City Staff. There is not a proposed change of use at this time.

Related Items:

- UDC-23-00065: Annexation

Attachments:

1. Ordinance
2. Planning Commission Staff Report

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING THE OFFICIAL ZONING MAP OF THE CITY OF CHEYENNE ESTABLISHING THE ZONING CLASSIFICATION OF MR MEDIUM-DENSITY RESIDENTIAL FOR LAND BEING ANNEXED TO THE CITY OF CHEYENNE LOCATED AT 5224 RIDGE ROAD (WEST OF RIDGE ROAD, BETWEEN JACKSON STREET AND DOUGLAS STREET). "

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the owner(s) of the property described herein has (have) applied for a zoning map amendment for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code ("UDC").

Section 2. That on April 3, 2023, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed zoning map amendment that is the subject of this ordinance, and recommended approval of said zoning map amendment.

Section 3. That the Governing Body of the City of Cheyenne finds that the zoning map amendment that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned application is hereby approved, and the zoning classification of the real property described as:

Tract 12, Dell Range Addition, a subdivision of part of the west one-half of Section 22, Township 14 North, Range 66 West of the 6th P.M., Laramie County Wyoming less that portion described in warranty deed recorded in Book 1148 Page 1486 and less that portion being the north 120 feet of the east half of Tract 12, Dell Range Addition, records of Laramie County, Wyoming

is hereby established as MR Medium-density Residential.

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in Section 5.1.3 of the UDC to comply with the zoning map amendment as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon its approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KRISTINA F. JONES, CITY CLERK

Published: _____
Wyoming Tribune-Eagle



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(Phone) 307-637-6282 (Fax) 307-637-6366

CITY OF CHEYENNE PLANNING COMMISSION

April 3, 2023

STAFF REPORT

FILE: UDC-23-00065-01: 5224 Ridge Road – Zoning Map Amendment

REQUEST: A request to rezone approximately 1.29 acres of land from County MR Medium-density Residential to City MR Medium-density Residential, concurrent with an annexation

LOCATION: West of Ridge Road, between Jackson Street and Douglas Street

APPLICANT: Clayton Howell

AGENT: John Lopeman

OWNER: Cheyenne Alliance Church – Jason Taylor

ZONING: County MR Medium Residential

FUTURE LAND USE: Urban Residential

PURPOSE: To allow a primary and secondary school

PREPARED BY: Erin Fagan, Planner II



RECOMMENDED MOTION:

Move to **approve** the rezoning of a portion of Tract 12, Dell Range Addition to MR Medium-density Residential as shown in the attached zone change map, noting that the project meets the review criteria for approval.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.2.1 Zoning Map Amendment
- UDC Article 5
- PlanCheyenne

BACKGROUND:

This zone change application proposes changing the zoning from County MR Medium-density Residential to City MR Medium-density Residential for 1.29 acres of land. The land is currently occupied by a religious facility. The proposed MR zoning allows for a variety of residential uses in a more compact neighborhood development pattern.

The proposed MR zoning allows for primary and secondary schools with a Conditional Use approval. A Conditional Use for a primary and secondary school was approved by the Board of Adjustment on March 16, 2023.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning District	Land Use
Subject Site	Urban Residential	County MR Medium-density Residential	Church
North	Urban Residential	MR	Residential
South	Urban Residential	MR	Church
East	Urban Residential	MR	Residential
West	Urban Residential	MR	Church

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Zoning Map Amendment, the Commission must make the following findings required in UDC 2.2.1.d. A detailed analysis is below:

1) The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan. (UDC 2.2.1.d.1)

PlanCheyenne encourages growth within the Urban Service Boundary and the maximization of existing infrastructure. This property is within the Urban Service Boundary, in an area with existing infrastructure.

The Future Land Use Designation for this property and the surrounding area is Urban Residential. According to comprehensive plan there are many optimal City zones for the subject property's future land use designation, including MR Medium-density Residential.

The policies of PlanCheyenne are supportive of this proposed zone change. The future land use plan encourages a variety of residential development patterns and the MR zone allows a wide variety of residential uses. The future land use plan for the Urban Residential area encourages complementary uses, such as schools.

The proposed zone change **complies** with review criterion 1.

- 2) The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas; (UDC 2.2.1.d.2)**

All adjacent property is currently within the City limits and zoned MR. Property to the north and east are existing single-family residential. Property to the south and west are currently used for a Church. The site will be replatted and combined with the existing lots to the south and west for the proposed primary and secondary school. MR is compatible with the area. The proposed zoning is also compatible with the future land use designation of Urban Residential.

The proposed zone change for the subject property **complies** with review criterion 2.

- 3) The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district (UDC 2.2.1.d.3)**

The current zone is a County zone and a City zone is required to develop within City limits. The City zone requested is the same as the County zone. The MR zone in both the City and the County are intended to develop with a variety of residential uses. Primary and secondary schools are a permitted use by right in the County Zone but require a Conditional Use approval in the City zone.

The proposed zone change **complies** with review criterion 3.

- 4) The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning (UDC 2.2.1.d.4)**

The zone change is proposed in association with a proposed redevelopment, a platting action and annexation. The associated platting action will conform to Article 4 standards to the extent possible.

The proposed zone change for the subject property **complies** with review criterion 4.

- 5) The ability of the application to support the Intent and Applicability statements of the proposed zoning district and achieve the Design Objectives of any specific standards. (UDC 2.2.1.d.5)**

The MR zone is intended to develop with a mix of density and dwelling types within a neighborhood. It is intended for areas where more compact neighborhoods development patterns are desired and specifically the Urban Residential Category in the PlanCheyenne. This area is designated as Urban Residential on the Future Land Use Plan.

The proposed zone change for the subject property **complies** with review criterion 5.

6) The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options if any specific development proposed in association with the application is not executed after approval. (UDC 2.2.1.d.6)

A primary and secondary school is proposed with this development. A primary and secondary school is allowed by Conditional Use in the MR zone district. A Conditional Use has been approved for a primary and secondary school on March 16, 2023. The proposed school should have no issues meeting standards for the MR zone district. The site could be used for a wide variety of housing options if it were not to develop into a school.

The proposed zone change **complies** with review criterion 6.

7) The review and recommendations of other reviewing bodies. (UDC 2.2.1.d.7)

No reviewing agencies provided recommendations regarding the proposed zone change.

The proposed zone change for the subject property **complies** with review criterion 7.

8) Whether the application will harm the public health, safety, or general welfare. (UDC 2.2.1.d.8)

City staff is satisfied that this proposed zone change would not adversely affect the public health, safety, or general welfare.

The proposed zone change for the subject property **complies** with review criterion 8.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- PlanCheyenne

Conformance with PlanCheyenne is covered by review criterion 1.

STAFF REVIEW:

Development – Seth Lloyd – Proposal is consistent with the comprehensive plan. Proposal matches the surrounding properties and the current County zone. Appears to meet all review criteria.

CONCLUSION:

Staff is satisfied that the application meets the review criteria set forth in UDC 2.2.1.(d). The MR zone is appropriate based on the comprehensive plan and context of the property.

ALTERNATIVES:

1. Recommend approval of the zoning amendment as submitted by the applicant (**Staff Recommendation**).
2. Recommend approval of the zoning amendment subject to conditions or modifications.
3. Recommend denial of the zoning amendment based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the zoning amendment until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

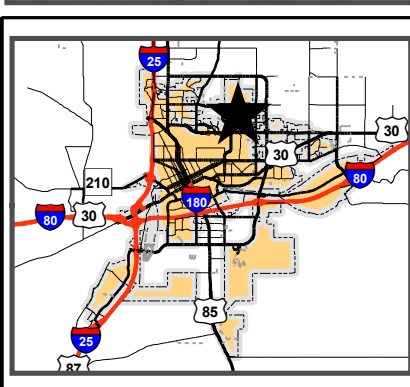
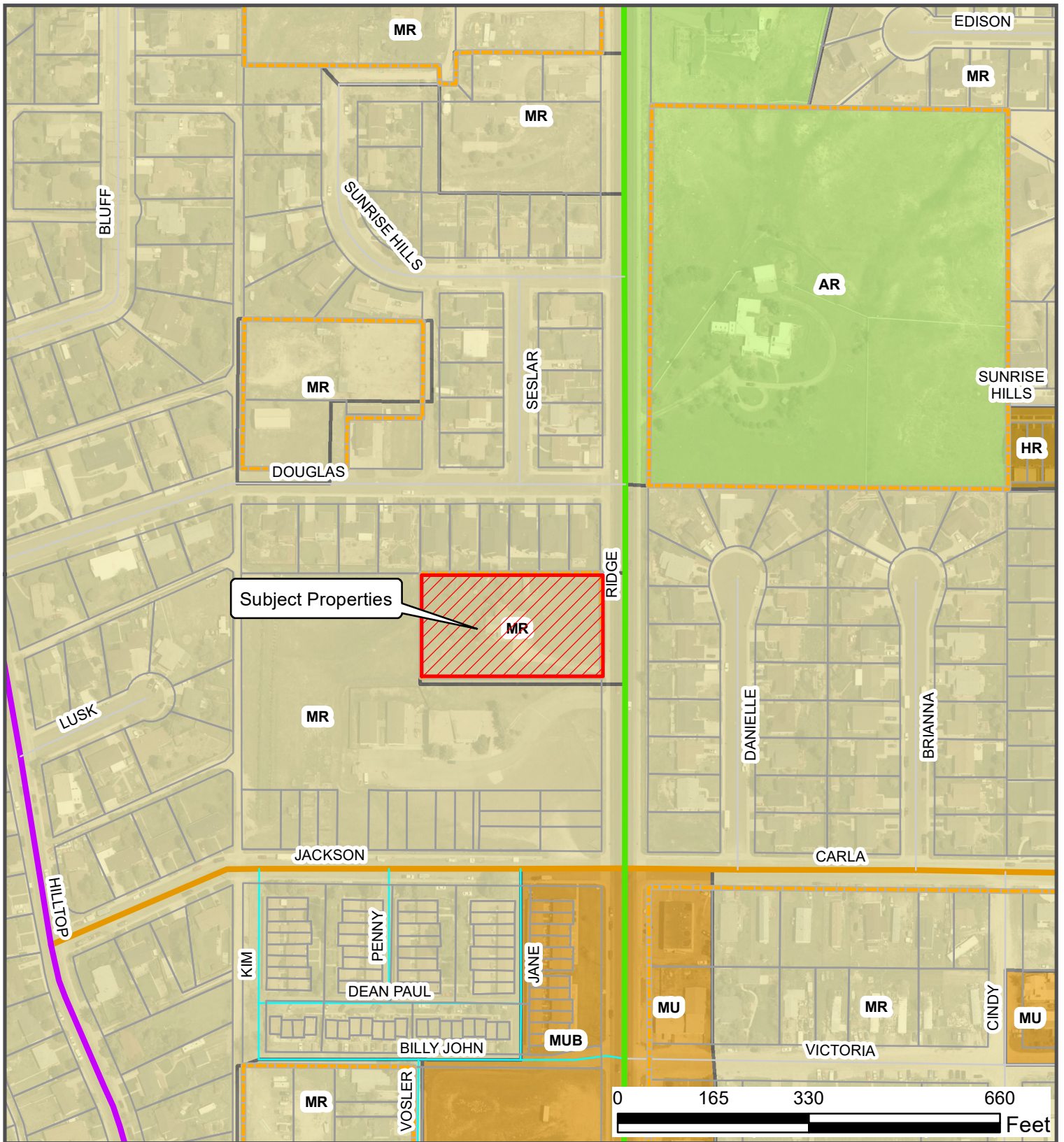
If the Commission acts contrary to staff's recommendation or modifies conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for approval or denial.

STAFF RECOMMENDATION:

Staff recommends approval of the rezoning of the property from County MR Medium-density Residential to City MR Medium-density Residential.

ATTACHMENTS:

1. Current Zoning Map
2. Future Land Use Map
3. Master Application
4. Applicant Provided Zone Change Map

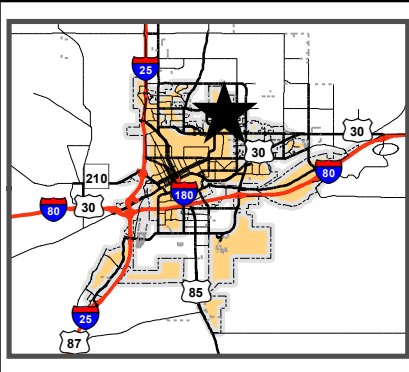
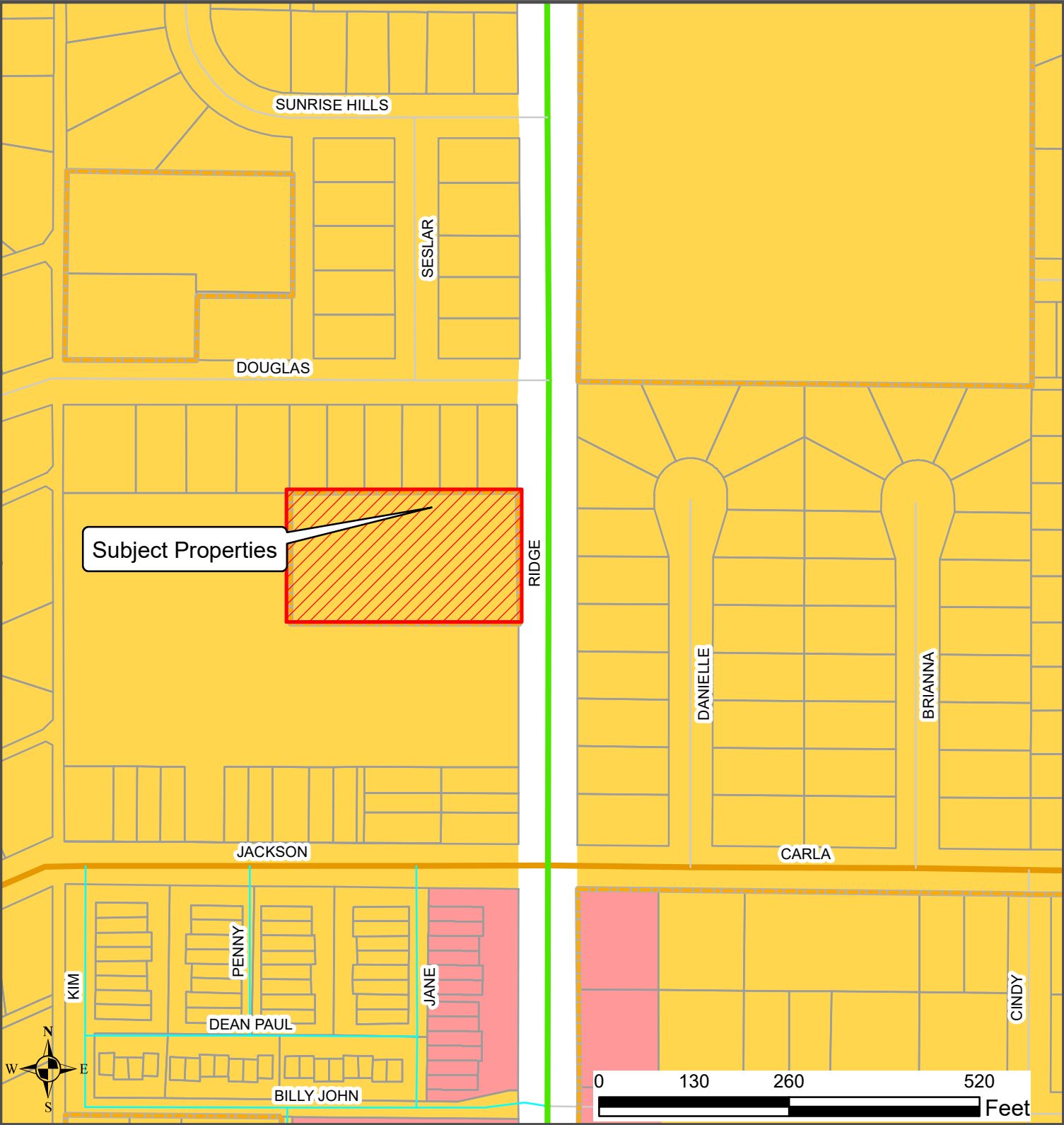


Attachment 1: Zoning Map UDC-23-00065-01

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

	Nov19_CityLimits		A-1 / Agricultural and Rural Residential
	Interstate		A-2 / Agricultural
	Principal Arterial		AG / City Agricultural
	Minor Arterial		MUR / Mixed Use Residential Emphasis
	Major Collector		CBD / Central Business District
	Minor Collector		CB / Community Business
	Local		NB / Neighborhood Business
	Private		MU / Mixed Use - County
	Platted not built		MUB / Mixed Use Business Emphasis
	HR / High Density Residential		MUE / Mixed Use Employment Emphasis
	MR / Medium Density Residential		HI / Heavy Industrial
	LR / Low Density Residential		LI / Light Industrial
	NR-2 / Neighborhood Residential - Med. Density		P / Public
	NR-3 / Neighborhood Residential - High Density		AD / Airport District
	AR / Agricultural Residential		PUD / Planned Unit Development
			X / Exempt



Attachment 2: Land Use Map UDC-23-00065-01

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Legend

	City Limits		Agricultural/Rural		Industrial
	Interstate		Rural Residential		Central Business District
	Principal Arterial		Urban Transition Residential		Community Business
	Minor Arterial		Urban Residential		Public and Quasi-Public
	Major Collector		Mixed-Use Residential		Military/Federal
	Minor Collector		Mixed-Use Commercial		Open Space and Parks
	Local		Mixed-Use Employment		
	Private				
	Platted not built				
	Ownership				

Planning and Development: Zoning Map Amendment Application

Submission date: **1 March 2023, 12:01PM**
Receipt number: **48**
Related form version: **10**

General Information

Applicant Name:	Clayton Howell
Applicant Address:	460 N. 300 E
Applicant City:	Kaysville
Applicant State:	Utah
Applicant Zip Code:	84025
Applicant Phone:	801-725-6118
Applicant Email	clayton@xlcharterdevelopment.com
Representative Name:	John Lopeman
Representative Address:	8985 South Eastern, Suite 220
Representative City:	Las Vegas
Representative State:	Nevada
Representative Zip Code:	89123
Representative Phone:	702-456-1070
Representative Email:	buildingpermit@ethosthree.com
Owner Name:	Jason Taylor - Cheyenne Alliance Church
Owner Address:	3501 Forest Drive

Owner City:	Cheyenne
Owner State:	Wyoming
Owner Zip Code:	82001
Owner Phone:	307-635-1014
Owner Email:	office@cheyennealliance.org
Who is the primary contact regarding this application?	Representative
Letter of Authorization	5200 Ridge Road_letter-of-authorization(exec).pdf
Project Location (Street Address or General Location):	5224 Ridge Road
Assessor's Parcel ID number(s)	14662232600800
Total Project Area	1.29
Existing Zoning	Other: County Pocket
Requested Zoning	MR - Medium-density Residential

Application-Specific Questions

Written Statement	Annex this parcel into the city to become part of a larger parcel to convert an existing religious facility into a Public Charter School, including new classroom buildings and associated site improvements.
Zoning Map	23007v-Zone-Annex-Map-STAMPED.pdf
Notification Letter	LTR ZONING Notification.docx Mailing List.docx
Supporting Documents / Information	A1.6 Site Plan Opt.6 Phase 1.pdf A1.6 Site Plan Opt.6 Phase 2.pdf A1.6 Site Plan Opt.6 Phase 3.pdf A5.1 Elevations.pdf

Review Criteria

The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan.

Acknowledgement of this review criteria

The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas.

Acknowledgement of this review criteria

The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district.

Acknowledgement of this review criteria

The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning.

Acknowledgement of this review criteria

The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards.

Acknowledgement of this review criteria

The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval.

Acknowledgement of this review criteria

The review and recommendations of other reviewing bodies

Acknowledgement of this review criteria

Whether the application will harm the public health, safety, or general welfare.

Acknowledgement of this review criteria

Signature / Certification

Applicant Signature

Name of signatory: John Lopeman, AIA - Principal

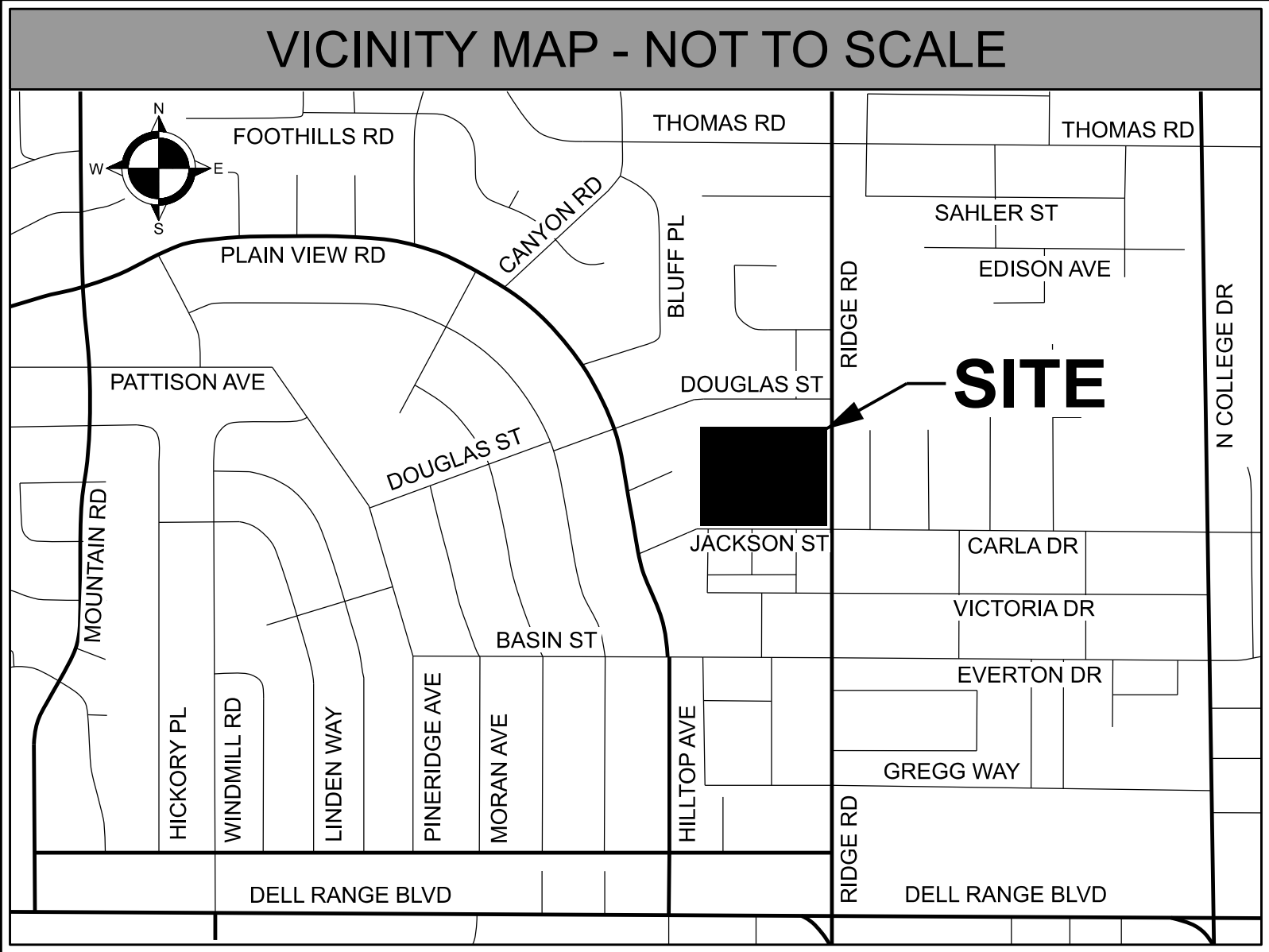
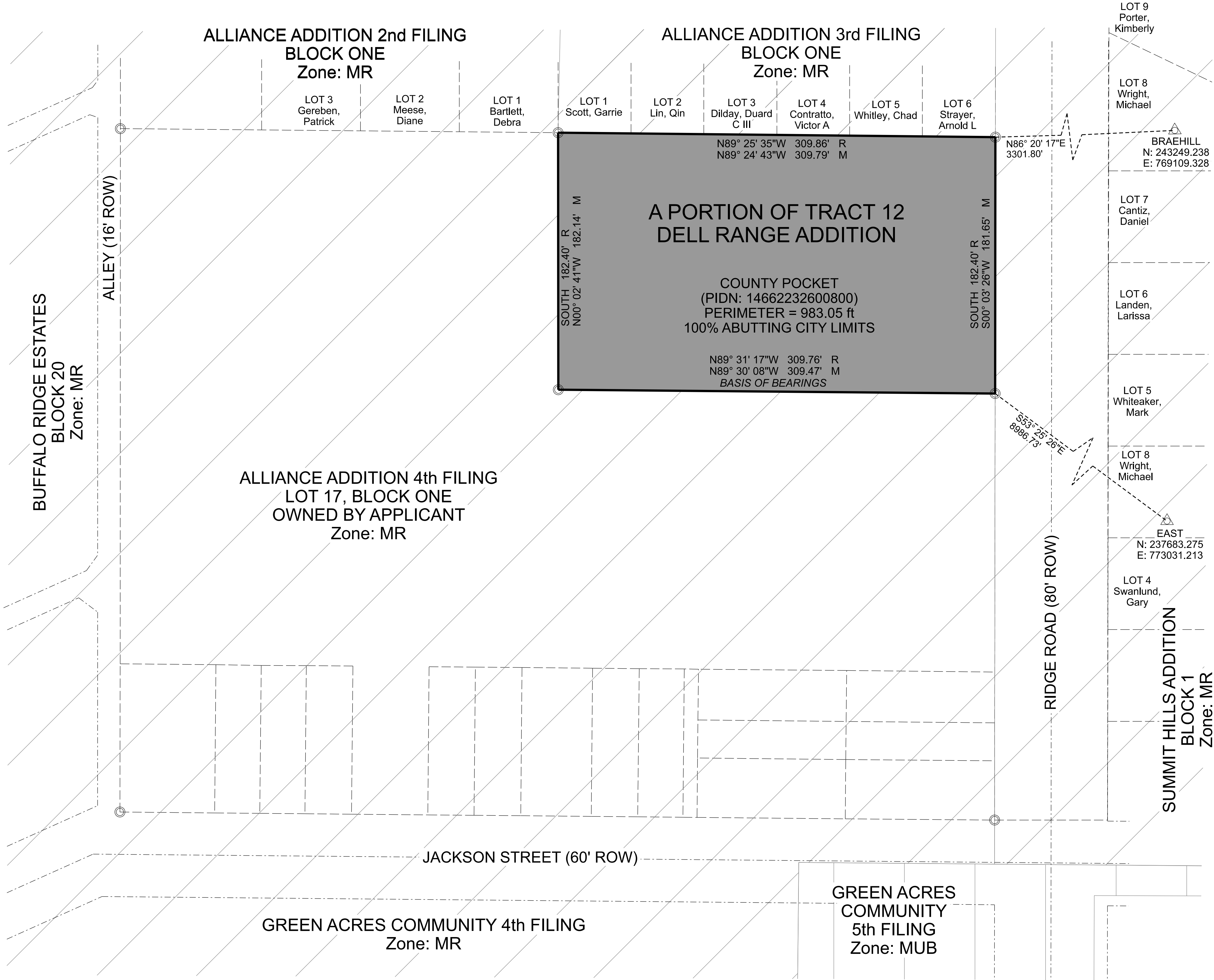
A handwritten signature in black ink, appearing to read 'John', is centered within a white rectangular box. The signature is fluid and cursive.

Uploaded signature image: [JCL Signature.jpg](#)

Please enter an email address for an email receipt.

buildingpermit@ethosthree.com

ANNEXATION REQUEST - COUNTY POCKET
A PORTION OF TRACT 12, DELL RANGE ADDITION



APPROVALS

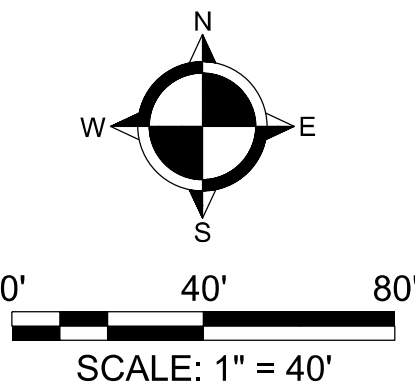
Approved by the City of Cheyenne Planning Commission this ____ day of _____, 2023.

Planning & Development Director, City of Cheyenne, Wyoming

Approved by the Council of the City of Cheyenne, Wyoming this ____ day of _____, 2023.

Mayor

ATTEST: _____
City Clerk



LEGEND OF SYMBOLS & ABBREVIATIONS

	PROPERTY BOUNDARY
	RIGHT OF WAY
	EXISTING PROPERTY LINES
	EXISTING PROPERTY LINES
	PROPOSED ANNEXATION / ZONING MR
	CITY OF CHEYENNE
	EXISTING ZONING MR
	CITY OF CHEYENNE
	EXISTING ZONING MUB
	RECORD DISTANCE
	MEASURED DISTANCE
	FOUND MONUMENTS
	CITY CONTROL MONUMENT

ANNEXATION AND ZONING MAP

FOR
A PORTION OF TRACT 12
DELL RANGE ADDITION

A COUNTY POCKET LOCATED IN A PORTION OF
TRACT 12, DELL RANGE ADDITION
LARAMIE COUNTY, WYOMING
PREPARED FEBRUARY 2023

CERTIFICATE OF SURVEYOR

State of Wyoming } ss
County of Laramie }
I, Gary N. Grigsby, a Professional Engineer and Land Surveyor registered in the State of Wyoming do hereby certify that this Map was prepared from the records and field notes of a survey conducted under my supervision during the month of February 2023, and that this map correctly shows found monuments and other details are correct to the best of my knowledge and belief.

Gary N. Grigsby, Wyoming PE & PLS #9283
February 28, 2023 (Job 23007)
For and on behalf of Y2 Consultants

MISCELLANEOUS NOTES

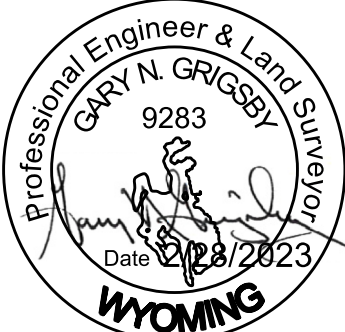
- BASIS OF BEARING: BEARINGS ARE BASED ON THE SOUTH LINE OF THE PORTION OF TRACT 12, DELL RANGE ADDITION BEING N89°30'08"W, SAID LINE BEING MONUMENTED ON THE EAST BY A REBAR WITH ALUMINUM CAP STAMPED PLS 2500 AND ON THE WEST BY A REBAR WITH ALUMINUM CAP WITH ILLEGIBLE MARKINGS.
- SURVEY DATUM FOR THIS PROJECT IS BASED ON STATE PLANE COORDINATES NAD 83, WYOMING EAST ZONE WITH DISTANCES SHOWN IN SURVEY FEET AND WITH ELEVATIONS BASED ON NAVD 88 USING GEOID 18. DIMENSIONS SHOWN ARE GRID COORDINATES.
- PARCEL DESCRIPTION IS BASED ON THIS PORTION OF TRACT 12, DELL RANGE ADDITION HAVING SENIOR RIGHTS AND AS RECORDED IN BOOK 1900 AT PAGE 2114.

PARCEL DESCRIPTION

TRACT 12, DELL RANGE ADDITION, A SUBDIVISION OF PART OF THE WEST ONE-HALF OF SECTION 22, TOWNSHIP 14 NORTH, RANGE 66 WEST OF THE 6TH P.M., LARAMIE COUNTY, WYOMING LESS THAT PORTION DESCRIBED IN WARRANTY DEED RECORDED IN BOOK 1148, PAGE 1486 AND LESS THAT PORTION BEING THE NORTH 120 FEET OF THE EAST HALF OF TRACT 12, DELL RANGE ADDITION, RECORDS OF LARAMIE COUNTY, WYOMING.
PARCEL CONTAINING 1.29 ACRES, MORE OR LESS.

DRAWING SET TITLE	Application Map
DATE	02/28/2023
JOB #	23007
ORIGINAL SHEET SIZE:	24" x 36"
DRAWN BY:	LB/MXV
CHECKED BY:	GNG

Y2 CONSULTANTS
ENGINEERING, SURVEYING & PLANNING
LANDSCAPE ARCHITECTURE, GIS
NATURAL RESOURCE SERVICES
Y2consultants.com
307 733 2989



XL CHARTER DEVELOPMENT, LLC
150 S STATE STREET
SALT LAKE CITY, UT 84111

ANNEXATION AND
ZONING MAP

SHEET NUMBER
1 of 1